

Franciscus Dylan Rosario,  
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
Carbone, Smith & Koyama, LLP;  
Michael R. Chambers;  
Phillips, Spallas & Angstadt LLP;  
Priya D. Navaratnasingham;  
Alberto Reyna;  
and DOES 1 through 20, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

**NOTICE OF RESERVATION**

**CRC 8.252 / EC 459**

**Defendants (caption order):** SUBHI ABDELHALIM; CSAA Insurance Exchange; Carbone, Smith and Koyama, LLP; Michael R. Chambers (SBN 132394); Phillips, Spallas and Angstadt, LLP; Priya D. Navaratnasingham (SBN 252686); Alberto Reyna (SBN 347323); and DOES 1 through 20, inclusive.

Plaintiff respectfully provides notice that the appendix of CGC-25-631802 defense filings attached to this packet (Exhibits Q-1 through Q-8) is preserved for two appellate purposes in *Rosario v. Abdelhalim*, Cal. 1st Dist. Ct. of Appeal, Case No. A173827:

1. As the exhibit set for a contemplated motion under California Rules of Court, rule 8.252(a),

1 to augment the record on appeal with documents that did not exist when the original record  
2 was designated (each 802 defense filing post-dates the original designation).

- 3 2. As the request set for appellate judicial notice under Evidence Code section 459, in conjunc-  
4 tion with Evidence Code sections 452(d) and 452(h), of court records of the related action  
5 CGC-25-631802 and of the May 12, 2026 minute order of Department 301 in this action.

6 Plaintiff further reserves the right to ask the Court of Appeal to take additional evidence on appeal  
7 pursuant to Code of Civil Procedure section 909 should the panel determine that resolution of the  
8 cross-case judicial estoppel question is necessary to the disposition of A173827. *In re Marriage of*  
9 *Bonds* (2000) 24 Cal.4th 1, 31-32 (recognizing section 909's narrow but available scope).

10 No relief is sought from the trial court by this notice.

11 This notice is filed under Code of Civil Procedure section 1010 and California Rules of Court,  
12 rule 2.118, and seeks no order, ruling, hearing, or fee. The trial court retains jurisdiction over this  
13 collateral filing notwithstanding the May 12, 2026 order. Code Civ. Proc. section 916(a); *Varian*  
14 *Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180. The clerk's acceptance is ministerial.  
15 Gov. Code section 69846.5; Cal. R. Ct. 2.259(c); *Voorhies v. Greene* (1983) 139 Cal.App.3d 989,  
16 994 to 995.

Dated: May 26, 2026



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